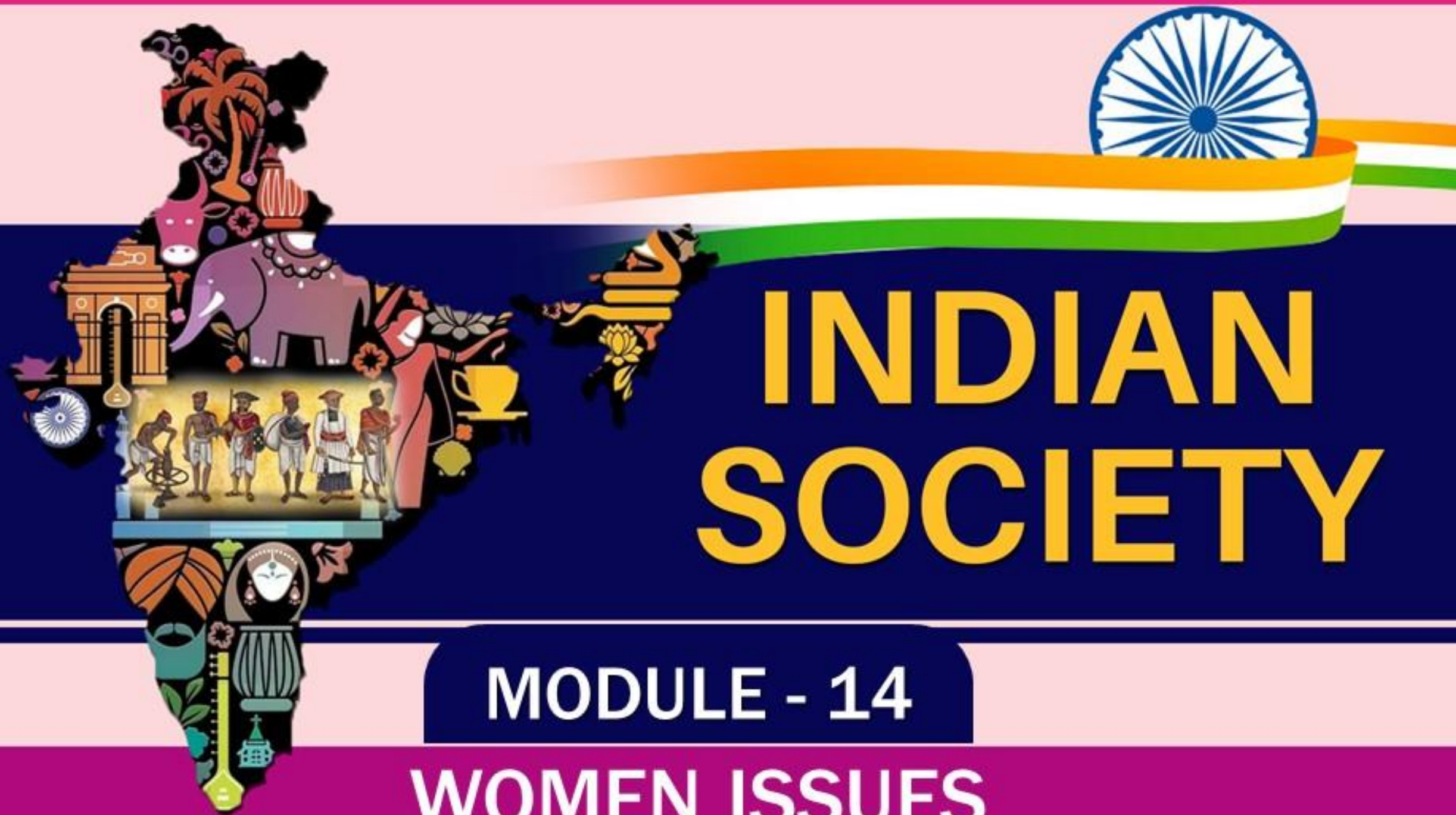




INDIAN SOCIETY

MODULE - 14

WOMEN ISSUES

- 1 96% of female workers are in the unorganized sector.
- 2 **Census 2011** - Female Work Force Participation Rates of STs - 44% (almost double), SCs - 28% and others 23%.
- 3 **IMF** reported that India has one of the lowest Female LFPR among emerging and developing countries.
- 4 Decrease in women employment from 36% of women being employed in 2006 to 24% of women being employed in 2016.
- 5 As per **UN Report on Women**, Women constitute half the world's population, perform nearly 2/3rd of its work hours, receive 1/10th of world's income and own less than 1/100th of the world's property.



6 Globally women spend three times more time on unpaid work than men, in India it is 9.8 times more. If assessed for wages, it would add USD 300 billion to the GDP

a **Horizontal segregation**: As per 68th round of NSSO, only 3.4% women in vocational training for mechanical, electrical engineering while it 29% for men.

b Manufacturing and services - account for just 18% of rural employment for women.

c **McKinsey Report**: "The Power of Parity": If gender gap is filled by 2025 then Indian GDP could increase by 60%.

d **Salary Index Report** found Gender pay gap in India is as high as 27%.

e women constitute 65% of agriculture workforce, 75% of rural workforce, but own only 13% of land as per agriculture census

f Feminisation of agriculture in rural areas.



1 As per Gender Gap Index, 2019 of WEF India ranks at 112

2 Contribution of Indian women to the GDP is 17%, far below the global average (37%), China (41%) and sub-Saharan Africa (39%) – NITI Ayog

SOCIAL AND CULTURAL

- There are 63mn Missing women. Maharashtra registered the maximum number of missing women followed by West Bengal.
- Unwanted girls (Son meta preference) are 21mn due to patriarchy.
- Double burden with public patriarchy.

VIOLENCE

- NCRB - incidents of serious crimes against women rose from 237 per day in 2001 to 313 per day in 2015.
- crimes against women have more than doubled over the past 10 years (NCRB)
- In 95% cases, offender is known to victim. (NCRB)
- 39 crimes against women were reported every hour in India (NCRB)



POLITICAL

- 1 49% of the Indian electorate consists of women. Yet, only 14% of the 17th Lok Sabha members are women MPs.
- 2 Increase in representation from 4.4 percent in 1951 to 11 percent in 2014 - way below the global average of 23.4 percent.
- 3 At this rate, it would take another 180 years to reach the desired gender balance
- 4 Presence of sarpanch patis



EDUCATION

- 1 Only 65% adult women literate as compared to 82% men
- 2 GER of girls in elementary education has improved dramatically, from 66% in 1991 to 97% in 2014.
- 3 GER of girls has also improved in higher education, from 7.5% in 2003 to close to 20% in 2013 (just a shade behind boys at 22%).
- 4 women account for 51% of all post-graduates in India today.

HEALTH

- 1 Latest Lancet series on maternal health reveal that one-third of the total maternal deaths in 2015 happened in two countries: India and Nigeria
- 2 Declining Child Sex Ratios (CSR): 945 in 1995, 927 in 2001 to 919 in 2011.



INDIAN SOCIETY

INDIA SCENARIO

ISSUES

MATERNAL DEATHS IN INDIA

- 1** **WHO:** MMR 560 in 1990, reduced to 178 in 2010-2012 to 130 in 2018
- 2** Three states – Kerala, Maharashtra and Tamil Nadu – have already met the Sustainable Development Goal target of 70 deaths per 1,00,000 live births.
- 3** **Reasons for High MMR:**
 - Institutional delivery rates in rural and urban areas were 29% and 68% respectively as per NFHS-III 2005-06.
 - 34% women did not receive an ante-natal check- up for births (NFHS)
 - Despite the Child Marriage Restraint Act (1978), 34% of all women are married below the legal minimum age of marriage (ie 18 years).



MUSLIM

- 1 The source of Muslim personal law is Muslim Personal Law (Shariyat) Application Act 1937. Absence of a definition of Sharia, has led to multiple interpretations and chaos.
- 2 Sharaya Bano vs Uol: SC pronounced Triple Talaq as unconstitutional
- 3 Polygamy is rampant among Muslim men
- 4 Nikah halala (a practice under which a woman who wishes to remarry her former husband must first consummate a nikah with another man).

HINDUS

- 1 Dowry and Pitru Runa
- 2 Property Rights- Only recently, Delhi High Court announced that the eldest daughter can be the karta of the Hindu Undivided Family property.
- 3 Bigamy- A Hindu second wife is devoid of her rights and also divested from her status as "wife".



UCC AS A SOLUTION

- 1 Expected to provide a stable system of judicial procedures dealing with the personal matters along with uniformity and gender just framework.
- 2 The laws can be well deliberated and debated with the involvement of all the stakeholders. For example, recently the law commission released a questionnaire on UCC to know people's opinion on the issue.
- 3 Like in Goa, UCC may guarantee a unified legal structure for the whole country irrespective of religion or ethnicity.
- 4 The non-existence of a blueprint of what we call the Uniform Civil Code has given way to heedless back-and-forth squabble and rhetoric and minority apprehension.



- Assisted reproductive sector could be a \$2bn market worldwide with 25k surrogate children being born each year.
- Indian market is estimated at \$445m

IMPLICATIONS

- 1 **Exploitation of women** - Many instances where surrogates have died due to complications
- 2 **Lack of post natal care** and lack of insurance for mother
- 3 **Frequent pregnancy** of the same surrogate in absence of rules and regulations
- 4 **Middlemen** exploiting ignorance of the illiterate women



IMPLICATIONS

- 5 Abandonment of babies born with disability or in case of twins
- 6 Issue of citizenship of the born child in case of surrogacy facilities adopted by foreign couples
- 7 Lack of privacy of surrogate mother which causes societal embarrassment in many cases
- 8 Depersonalize reproduction and create a separation of genetic, gestational, and social parenthood.
- 9 Change in motives for creating children i.e. children are not conceived for their own sakes, but for another's benefit.



SURROGACY (REGULATION) BILL, 2020

- 1 Seeks to ban commercial surrogacy and allow only infertile heterosexual couples to bear a child using a 'related' - surrogate mother.
- 2 Mandatory for surrogate mothers to be married and be a close relative. She should also have given birth to a healthy child before bearing a baby for another couple. A woman can only bear one surrogate child.
- 3 Single men and women, heterosexual couples who choose not to opt for marriage, gay couples, transgender persons, single parent cannot have baby through surrogacy.
- 4 Non-resident Indians or People of Indian Origin card-holders will not be allowed to take recourse to a surrogate mother in India.



REGULATIONS

- Lok Sabha passed the Surrogacy (Regulation) Bill 2016, aimed at banning commercial surrogacy to protect women from exploitation
- The House also proposed to allow only altruistic surrogacy by infertile Indian couples from a "close relative" only
- Singles, homosexuals and live-in couples cannot apply for surrogacy

SURROGACY (REGULATION) BILL, 2020

5 Legally wedded Indian couples can have a surrogate child only after five years of legal marriage and will require a medical certificate as proof of infertility.

6 A national surrogacy board chaired by the health minister will be created to oversee implementation.

7 Cons

a Sudden regulation will push industry underground

b silent on fate of frozen embryos.

c livelihood of poor women.

d Doesn't address modern social reality of homosexuals, live in partners etc.

e Violation of reproductive rights of surrogate mothers.

f Women could still be coerced into surrogacy as they often are, in intra-family decision



MATERNITY BENEFIT AMENDMENT ACT, 2017

Article 42 of the Constitution guarantees maternity benefits to all working women.

- 1 Maternity leave increased from 12 weeks to 26 weeks (better than WHO reco of 24 weeks for higher survival rates and healthy dev). Applicable to all establishments employing 10 or more persons.
- 2 In case of a woman who has two or more children, the maternity benefit will continue to be 12 weeks
- 3 12 week Maternity leave for adoptive and commissioning mothers (biological mother who uses her egg to create an embryo implanted in another woman)
- 4 Option to work from home, crèche facility (50+ employees)



MATERNITY BENEFIT AMENDMENT ACT, 2017

- 5 Informing women employees of the right to maternity leave
- will help 18 lakh women workforce in organised sector
 - will increase WFPR

- 6 **Cons:**
- Despite law commission recommendation, 90% of working women in the unorganised sector are not covered.
 - perpetuates gender role stereotypes
 - silent on paternity leave
 - competitive set back for women

- 7 Can follow Singapore Model: women in the city-state get 16 weeks of maternity leave with the employer paying for eight weeks and the next eight reimbursed to the employer by the government.



MATERNITY BENEFIT AMENDMENT ACT, 2017

PATERNITY LEAVE

- In India, Public sector grants 15 days of paternity leave while there is no law on paternity leave in the private sector.
- Britain and Japan offer a year unpaid leave for both parents.



SEXUAL HARRASMENT AT WORKPLACE

Review meeting on implementation of the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 was held in 2016.

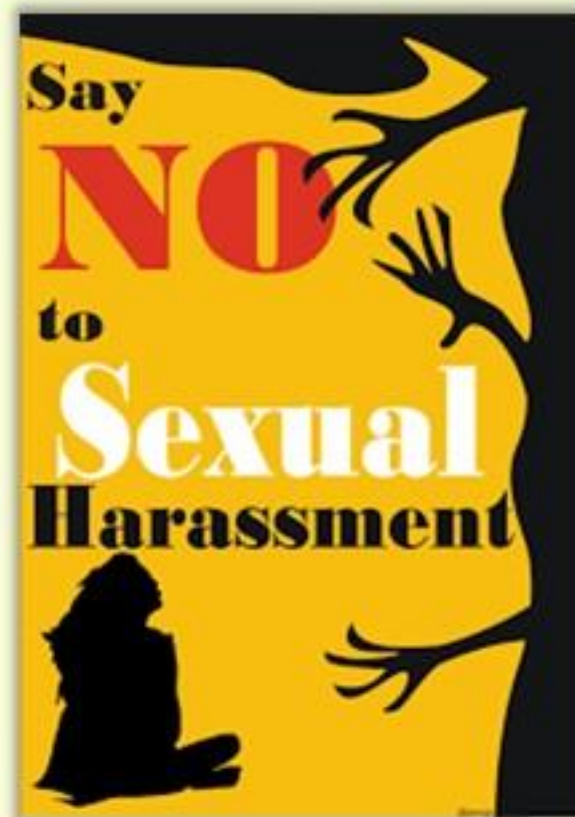
- 1 Women covers clients, customers and domestic workers.
- 2 Expands 'workplace' beyond traditional offices, includes places visited for work and telecommuting.
- 3 mandates the constitution of the internal complaint committee (ICC)
- 4 filing of an audit report of the number of complaints and action taken at the end of the year.
- 5 Ministry of WCD recently launched an online complaint management system titled Sexual Harassment electronic-Box (SHe-Box) for the effective implementation of the SH Act, 2013.



SEXUAL HARRASMENT AT WORKPLACE

ISSUES IN IMPLEMENTATION

- 1 According to a 2015 research study, 36% of Indian companies and 25% of multinational companies had not yet constituted their Internal Complaints Committee (ICCs) which is mandatory under the Act.
- 2 The Act does not fix accountability as to who is in charge of ensuring that workplaces comply with the Act
- 3 Most women don't even report.



AS PER NITI ACTION PLAN

1 No provision of parental leave for men reinforces that unpaid, household work is sole responsibility of women.

2 Awareness about their rights is needed. Ex. in Brazil, electronic kiosks have been set up at stations on railways lines for providing information to women who are survivors of violent crimes about the support services that can be accessed by them.

3 Women's wellbeing index can be adopted.



RESERVATION FOR WOMEN

- 1 73rd (Article 243D) and 74th (Article 243T) constitutional amendment acts mandating at least 1/3 of seats for women in PRIs.
- 2 108th (Women Reservation Bill) which seeks to reserve one-third of all seats for women in the Lok Sabha and the state legislative assemblies.
- 3 110th and 112th (mandating 50% seats for women in PRIs and Urban local bodies) constitutional amendment bills were proposed, although they have lapsed.
- 4 Bihar, Uttarakhand, Madhya Pradesh, Punjab and Himachal Pradesh have already reserved 50% seats and Sikkim reserved 40% seats for women in local governance.
- 5 There is improvement in Grass root level political participation of women at all India average of 37%



1 India has announced that women will be allowed to occupy **combat roles** in all sections of its army, navy and air force.

- 2
- Landscape of modern warfare itself has changed with more sophisticated weapons, greater focus on intelligence gathering and emergence of cyberspace as arenas of combat.
 - Brute force, often cited as a reason for non-inclusion of women, is less necessary today.



3

Women Entrepreneurs:**a**

According to 6th Economic census, only 13% women entrepreneurs (out of which 1/3rd from agriculture) and only 10% women start up founders are there in India

b

GES 2017 - 'Women First, Prosperity for All'

c

Govt. schemes - Trade related Entrepreneurship Assistance and Development (TREAD), Mahila Vikas Nidhi, National Policy for Skill development and entrepreneurship 2015 also had special focus on women.



WOMEN'S ORGANISATIONS

POST INDEPENDENCE

- 1 Tebhaga peasant movement in Bengal in 1946-47, formed Nari Bahini
- 2 Telangana peasant movement 1946-50
- 3 Tribal women: Shahada movement in Maharashtra in 1972, the movement for drought relief and land, in which the Bhil tribal women were very prominent and led a militant anti-liquor campaign
- 4 Anti-price rise movement of 1973-75 and Nav Nirman movement in Gujarat



WOMEN'S ORGANISATIONS

POST INDEPENDENCE

- 5 **Trade union:** SEWA (Self Employed Women's Association) by ELA BHATT-women's wing of the Textile Labour Association, Gujarat. Works for women in unorganised sector.
- 6 **Environment:** Chipko movement, 1974
- 7 **Bhopal Gas Peedit Mahila Udyog Sangathan** to fight for justice for victims of gas leak in the Union Carbide factory in Bhopal in 1984.



WOMEN'S ORGANISATIONS

MOVEMENTS

- 1 Organised around specific incident like the Mathura Rape Case (1978), Jessica Lal Murder case, the latest ones were Nirbhaya Case Delhi (2012).
- 2 Special Marriage Act 1954, the Hindu Marriage Act (1956), Inter State Succession Act (1956) and Dowry Prohibition Act 1961 were enacted as a result of women movements

As Vivekananda rightly said, "There is no chance of the welfare of the world unless the condition of women is improved. It is not possible for a bird to fly on one wing".



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